

25NNCV07953 25NNCV07953

County: los-angeles

Division: Civil Law and Motion

Department: A

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Case Number: 25NNCV07953 Hearing Date: August 14, 2026 Dept: A

TENTATIVE RULING

AUGUST 14, 2026

(CONTINUED FROM JULY 31, 2026)

MOTION TO COMPEL FURTHER RESPONSES

Los

Angeles Superior Court Case # 25NNCV07953

MP: Plaintiffs

Tereza Shahbazian and Emil Golanians

RP: No

opposition received

NOTICE:

The Court is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is required and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice may be
given either by email at or by telephone at (818)
260-8412.

ALLEGATIONS:

Tereza Shahbazian and
Emil Golanians ("Plaintiffs") allege that
on February 26, 2023, they purchased a 2023 Honda CR-V, which was accompanied
by express and implied warranties from American Honda Motor Co., Inc. ("Defendant"). Plaintiffs assert that the vehicle was
delivered
with serious defects and nonconformities to the warranty, including transmission,
suspension, structural, and electrical system defects. Plaintiffs claim that despite a reasonable
number of repair attempts, Defendant was unable to conform the vehicle to
applicable warranties.

The Complaint,
filed November 7, 2025, alleges causes of action for: (1) Violation of
Song-Beverly Act – Breach of Express Warranty; (2) Violation of Song-Beverly
Act – Breach of Implied Warranty; and (3) Violation of the Song-Beverly Act, §
1793.2.

MOTION ON CALENDAR:

On April 24, 2026, Plaintiffs
filed a Motion to Compel Defendant's Further Responses to Requests for
Production of Documents, set one ("RPD").

On July 30, 2026, Defendant filed
an untimely opposition.

The matter
initially came for hearing on July 31, 2026, but was continued to August 14,
2026 as Defendant informed the Court of the untimely opposition and represented
that responses had been provided thereby mooted a portion of the motion.

On August 6,
2026, Plaintiffs filed a reply.

LEGAL STANDARD:

A motion to compel further RPD responses may be brought based on: (1) incomplete statements of compliance; (2) inadequate, evasive, or incomplete claims of inability to comply; or (3) unmerited or overly generalized objections. (C.C.P. § 2031.310(a).)

A motion to compel further production must set forth specific facts showing good cause justifying the discovery sought by the inspection demand and be accompanied by a meet and confer declaration. (C.C.P. § 2031.310(b)(1).) “Good cause” is shown by “a disputed fact that is of consequence in the action and the discovery sought will tend in reason to prove or disprove that fact or lead to other evidence that will tend to prove or disprove the fact.” (Digital Music News LLC v Superior Court (2014) 226 Cal.App.4th 216, 224.) The motion must be made within 45 days of service of the verified response or supplemental verified response, or on/before any specific late date to which the parties have agreed in writing. (C.C.P. § 2031.310(c).)

If the moving party has shown good cause for the requests for production, the burden is on the objecting party to justify the objections. (Kirkland v. Superior Court of Los Angeles County (2002) 95 Cal. App.4th 92, 98.)

ANALYSIS:

Plaintiffs move to compel Defendant's further responses to RPD Nos. 1-30. In Plaintiffs' separate statement, they state that RPD No. 12 is not at issue. (Pl.'s Separate Statement at p.22.)

Plaintiffs propounded the RPDs on February 27, 2026 and Defendant responded with objections on April 15, 2026. (Ardi Decl., ¶¶11-12, Ex. 1 [RPD], Ex. 2 [RPD Responses].) On April 22, 2026, Plaintiffs' counsel emailed defense counsel, requesting the documents promised in Defendant's first set of responses and the parties agreed to meet and confer via telephone. (Id., ¶15.) On April 24, 2026, counsel conducted a meet-and-confer telephone call but were unable to reach an agreement on whether Defendant would provide supplemental responses. (Id., ¶¶14, 16, Ex. 3.)

Plaintiffs argue that

the documents are relevant as they relate to Plaintiffs' SBA claims;

Plaintiffs' own vehicle; Defendant's warranty and replacement/repurchase policies, procedures, and practices; and Defendant's knowledge of the same or similar defects in other vehicles of the same year, make, and model as the subject vehicle. (Mot. at pp.6-9.)

In the untimely

opposition, Defendant states that: (1) it agreed to produce all responsive documents in whole for RPD Nos. 1-6, 9-11, 13-14, 16, 23-26, and 28; (2) it complied with C.C.P. § 2031.230 that after a diligent search and reasonable inquiry, no documents existed for RPD Nos. 7-8, 15, 17-22, 27, and 29; and (3) RPD No. 30 was overbroad. (Opp. at pp.7-9; Zipser Decl., ¶¶5-7, Ex. C [April 15, 2026 RPD Responses].) In the reply, Plaintiffs do not directly address whether Defendant's responses moot portions of this motion but continue to request that Defendant's objections be stricken and that code-complaint RPD responses be provided.

Although Defendant

responded it would provide responsive documents to RPD Nos. 1-6, 9-11, 13-14, 16, 23-26, and 28, it is unclear when such production will be made. As such, the motion is granted as to RPD Nos. 1-6, 9-11, 13-14, 16, 23-26, and 28 to the extent that production of documents remains outstanding.

To RPD Nos. 7-8, 15,

17-22, 27, and 29, Defendant objected but also responded that it conducted a diligent search and reasonably inquiry but no responsive documents exist. The Court finds this response to be sufficient.

C.C.P. § 2031.230

states: "A representation of inability to comply with the particular demand for inspection, copying, testing, or sampling shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand. This statement shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party. The statement shall set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or

category of item.” While Defendant did not address the last portion of section 2031.230, if no such documents exist or ever existed, then it follows that no other person or organization would have possession, custody, or control of such documents. As such, the motion is denied as to RPD Nos. 7-8, 15, 17-22, 27, and 29.

RPD No. 30 seeks all documents in the form of a list or compilation, of other customer complaints in Defendant’s electronically stored information of database(s) that are “substantially similar” to complaints made by Plaintiffs with respect to the subject vehicle in other 2023 Honda CRV vehicles. Plaintiffs defined “substantially similar” as “similar customer complaint that would be the same nature of the reported system, malfunction, trouble code, Technical Service Bulletin Recommendation, dashboard indicator light, or other manifestation of a repair problem, as description listed in any warranty summary or repair order for the SUBJECT VEHICLE. [The customer complaints in this matter can be found in Defendant’s warranty history/summary and within the line items of the repair orders created at Defendant’s authorized repair facility. If YOU are having issues determining Plaintiffs’ Complaints, Plaintiffs is willing to meet and confer and list out the specific complaints and the language used to describe them. This should not include any routine or scheduled maintenance items.].” (Pl.’s Separate Statement at p.35.)

Defendant objected that RPD No. 30 was vague, overly broad, irrelevant, not reasonably calculated to lead to the discovery of admissible evidence; the RPD fails to describe with reasonable particularity the documents or categories of documents being requested; Plaintiff’s complaints are not identified; the RPD violates the right of privacy and seeks confidential, commercially sensitive, and/or proprietary information; and the RPD asks Defendant to respond on behalf of another entity.

RPD No. 30 is not narrowly tailored as written. According to the complaint, Plaintiffs’ vehicle suffered defects and nonconformities to the warranty including, but not limited to, “transmission, suspension, structural, and electrical system defects.” (FAC, ¶10.) These are broad categories of defects that could potentially encompass nearly every type of complaint ever lodged against Defendant for vehicles of the same year, make, and model as the subject vehicle. The defects alleged in the complaint are not specifically defined—for example, what structural defects

were present in the subject vehicle and what particular portion of the electrical system was at issue? Plaintiffs have not narrowed this RPD to a geographical region for a certain time period, have not specifically alleged what the defects are, have not identified which TSBs at issue, have not identified by what defects and trouble codes were at issue in the repair orders, etc. As currently worded, the RPD is impermissibly broad such that the motion is denied as to RPD No. 30.

As such, the motion to compel Defendant's further responses to: (1) RPD Nos. 1-6, 9-11, 13-14, 16, 23-26, and 28 is granted; (2) RPD No. 12 is moot as it is not at issue; and (3) RPD Nos. RPD Nos. 7-8, 15, 17-22, 27, and 29-30.

Plaintiffs did not request sanctions.

RULING:

In the event a party requests a signed order or the court in its discretion elects to sign a formal order, the following form will be either electronically signed or signed in hard copy and entered into the court's records.

ORDER

Plaintiffs Tereza

Shahbazian and Emil Golanians's Motion to Compel Further Responses came on regularly for hearing on August 14, 2026, with appearances/submissions as noted in the minute order for said hearing, and the court, being fully advised in the premises, did then and there rule as follows:

The

Motion to Compel Defendant's Further Responses to RPD, set one, IS: (1) GRANTED AS TO RPD NOS. 1-6, 9-11, 13-14, 16, 23-26, AND 28; (2) MOOT AS TO RPD NO. 12; AND (3) DENIED AS TO RPD NOS. 7-8, 15, 17-22, 27, AND 29-30. Defendant is ordered to provide further responses within 30 days.

PLAINTIFF

TEREZA SHAHBAZIAN TO GIVE NOTICE.

IT IS SO ORDERED.